

		licensed attorney to provide guidance on how to properly proceeding with this case. "Based on the foregoing, the hearing on the amended petition is CONTINUED as stated above. "Petitioner is ordered to serve Respondent with notice of this ruling." Since the time of the April 9, 2026 Minute order, nothing new has been filed. Accordingly, the amended petition is DENIED. The clerk shall give notice.
5.	<i>Baldeo vs. Whittier Christian High School</i> 2026-01546820	Before the court is the hearing on the Verified Petition for Injunctive Relief Compelling Compliance with Labor Code Section 1198.5 and for Statutory Penalties, Attorney Fees, and Costs (Petition) filed by plaintiff Sharlecia Baldeo (Plaintiff) against defendant Whittier Christian High School (Defendant). For the reasons set forth below, the Petition is GRANTED. Labor Code section 1198.5 provides, "[e]very current and former employee, or their representative, has the right to inspect and receive a copy of the personnel records that the employer maintains relating to the employee's performance, including education or training records, or to any grievance concerning the employee." (Lab. Code § 1198.5, subd. (a)(1).) Pursuant to Labor Code section 1198.5, subdivision (b)(1), "[t]he employer shall make the contents of those personnel records available for inspection to the current or former employee, or their representative, at reasonable intervals and at reasonable times, but not later than 30 calendar days from the date the employer receives a written request" (Lab. Code § 1198.5, subd. (b)(1).) "If an employer fails to permit a current or former employee, or their representative, to inspect or copy personnel records within the times specified in this section, or times agreed to by mutual agreement as provided in this section, the current or former employee or the Labor Commissioner may recover a penalty of seven hundred fifty dollars (\$750) from the employer." (Lab. Code § 1198.5, subd. (k).) "A current or former employee may also bring an action for injunctive relief to obtain compliance with this section, and may recover costs and reasonable attorney's fees in such an action." (Lab. Code § 1198.5, subd. (l).)

		On May 4, 2026, Defendant filed an unverified answer to the Petition. Defendant was duly served with notice of the hearing on this Petition (see ROA 12), but no formal opposition to the Petition was filed. Given no formal opposition to the Petition was filed, the only evidence before the court is the verified Petition and declaration of Plaintiff's counsel. These documents show, on December 5, 2025, Plaintiff, through her counsel, made a written request to Defendant for inspection and copying of her personnel records, but Defendant failed to produce the records within the time required by Labor Code section 1198.5. (See Petition ¶¶ 6-7 and Exhibit 1 thereto.) Defendant admits in its answer to the Petition Plaintiff, through her representative, submitted a written request dated December 5, 2025, seeking inspection and copying of personnel records. (See Answer, ¶ 6.) Although Defendant's answer vaguely asserts Defendant has complied and continues to comply with section 1198.5 and has produced all personnel records in its possession, custody, or control that are responsive, except for those that are unavailable due to circumstances outside Defendant's control or are subject to valid legal exemptions, Defendant has submit no evidence to support this assertion nor has Defendant provided any specific facts as to how and when it allegedly comply, or what documents are exempt and why. Based on the foregoing, the Petition is GRANTED. Defendant is ordered to make the contents of Plaintiff's personnel records available for inspection by Plaintiff, through her counsel, within 30 days of service of notice of this order. Plaintiff's request for the \$750 in statutory penalties under Labor Code section 1198.5, subdivision (k) also is GRANTED as Plaintiff has shown Defendant failed to permit Plaintiff to inspect her personnel records within the time specified in Labor Code section 1198.5. Finally, Plaintiff's request for \$4,005 in attorney fees and \$712.50 in costs under Labor Code section 1198.5, subdivision (l) is GRANTED as these amounts are reasonable and adequately supported by the declaration of Plaintiff's counsel. (See Ewart Decl., ¶¶ 5-9.) Plaintiff's counsel is ordered to submit a proposed judgment in accordance with this ruling, and to give notice of this ruling.
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